

25STCV00535 25STCV00535

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-15

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Case Number: 25STCV00535 Hearing Date: July 15, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

WELLS FARGO BANK, N.A.

;

Plaintiff,

vs.

OSCAR J MELENDEZ

, et al.;

Defendants.

Case

No.:

25STCV00535

Hearing

Date:

July
15, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

PLAINTIFF'S motion for judgment on the
pleadings

MOVING PARTY: Plaintiff Wells Fargo Bank,
N.A.

RESPONDING PARTY: Unopposed

Motion for Judgment on the Pleadings

The court
considered the moving papers filed in connection with this motion. No opposition was filed.

REQUEST FOR JUDICIAL NOTICE

The court grants Plaintiff Wells Fargo Bank,
N.A.'s ("Plaintiff") request for judicial notice of the Complaint, Plaintiff's
motion to deem request for admissions admitted, and the court's order deeming
Plaintiff's request for admissions as admitted.

DISCUSSION

Plaintiff moves the court for a Judgment on the Pleadings against
defendant Oscar J Melendez ("Defendant") on the ground that the Complaint and
Defendant's responsive pleading entitle Plaintiff to a judgment as a matter of
law.

The court grants Plaintiff's motion for judgment on the pleadings
because the Complaint states facts sufficient to constitute a cause of action for

breach of contract against Defendant and Defendant's Answer does not state facts sufficient to constitute a defense to the Complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).)

The elements of a breach of contract cause of action are: (1) existence of contract; (2) plaintiffs' performance or excuse for nonperformance; (3) defendants' breach (or anticipatory breach); and (4) resulting damage. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

Plaintiff has alleged in its Complaint that (1) Plaintiff entered into a personal loan agreement with Defendant on October 6, 2023, agreeing to loan Defendant \$45,000.00, (2) Plaintiff has performed all obligations to Defendant except those obligations Plaintiff was prevented or excused from performing, (3) on July 28, 2024, Defendant breached the agreement by failing to remit any further payment on the account, and (4) as a result of Defendant's breach, Plaintiff suffered damages in the amount of \$46,400.85. (Compl., ¶¶ BC-1, BC-2, BC-3, BC-4; Ex. A.)

Defendant's Answer alleges that Defendant admits that all of the statements of the Complaint are true except that Defendant reached out to Plaintiff in March of 2024 and asked for a stop payment until January/February of 2025, but Defendant did not hear back until he received the summons. (Answer, ¶ 3.b.(1).) Thus, Defendant's Answer does not state facts sufficient to constitute a defense to the breach of contract cause of action.

Plaintiff argues that there are sufficient facts stated for Plaintiff's causes of action for Breach of Contract (Implied in Fact), Money Lent/Money Paid, Open Book Account, and Account Stated. The court denies Plaintiff's motion for judgment on the pleadings as to those causes of action because Plaintiff has not alleged those causes of action in the Complaint. Plaintiff only alleges a cause of action for breach of contract. (Compl., pp. 2 ¶ 8, 3.)

ORDER

The court grants plaintiff Wells Fargo Bank, N.A.'s motion for judgment on the pleadings without leave to amend as to the first and only cause of action in the Complaint for breach of contract.

The court will sign and enter judgment in favor of plaintiff Wells

Fargo Bank, N.A. in the form lodged with the court by Plaintiff on December 23, 2025, as modified by the court. (Code Civ. Proc., § 438, subd. (h)(3).) The court has stricken the award of \$495 in costs from the proposed judgment. Plaintiff Wells Fargo Bank, N.A. may claim costs by serving and filing a memorandum of costs pursuant to California Rules of Court, rule 3.1700(a)(1).

The court orders that (1) the Final Status Conference set for March 10, 2028, and (2) the Non-Jury Trial set for March 22, 2028, are vacated.

The court orders plaintiff Wells Fargo Bank, N.A. to give notice of this ruling and notice of entry of judgment.

IT IS SO ORDERED.

DATED: July 15, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court